

Northgate Talent Partners LLC

www.northgatetalent.com

April 29, 2019

Amy Alvarez
General Manager
Howard, Carlson and Tran

Dear Amy,

Thank you for choosing us to find your next General Counsel. This letter sets out how we will run that search for Howard, Carlson and Tran, and the terms we will run it under. We treat a retained mandate as a partnership. So we like to begin with everything said plainly, in writing, before the work starts. Please read what follows with care. If any line does not match what we agreed, call me before you sign, and we will put it right.

The Search Before Us

You need a General Counsel who can be a true partner to your leadership, not only a careful lawyer. Our task is to find that person, to test them hard, and to bring you a short slate you can act on with confidence. We work on a retained basis. That means we work for you alone on this search, and we stay with it until the seat is filled. Discretion runs through all of it. We describe prospective candidates to you by their current role and record, never by name in anything that circulates, and we hold names close until both sides are ready to meet.

The assignment moves through a few clear stages, and I want you to know the shape of it from the first day.

- First, we agree the position specification with you and your board, so we are all searching for the same person.
- Second, we map the market, build a long list from that map, and approach prospects with care.
- Third, we interview and assess in depth, then bring you a short slate framed by fit and evidence, not by name alone.
- Fourth, we stay beside you through your own interviews, the references, and the offer, and we do not step back until your new General Counsel has accepted and started.

Who Will Do the Work

I will oversee this engagement myself, and I remain your point of contact whenever you want one. Sandra Fuentes, a Principal in our practice, will lead the search day to day and own the relationship with you and with every candidate she brings forward. James Grant, also a Principal, will work the most senior end of the market and lend his judgment on the finalists. Nicole Donovan, our Research Associate, will build the candidate research and keep the small loops closed, so nothing on our side goes quiet on you. You will find us easy to reach.

Our Fee, and When We Start

For a retained search of this kind we work to a fixed professional fee of \$62,000. That fee covers the whole assignment, from the specification through to a placement made. It is not tied to the pay of the person you hire. You know the cost at the outset, and it does not move as the search does. We are ready to begin on May 9, 2019, once this letter is signed and returned, and we will hold that date for you.

How We Invoice

We bill the fixed fee in three parts, tied to the milestones of the search: at your signing of this letter, at the delivery of the short slate, and on your chosen candidate's acceptance. Invoices are due on receipt. Reasonable direct costs that we arrange at your request, such as candidate travel, are billed at cost and shown in full. We will clear anything out of the ordinary with you first.

The Length of the Engagement, and Ending It

The engagement runs from your signature until the search is done and our final invoice is settled. Either of us may end it sooner, in writing. We ask only for a short conversation first, so nothing ends on a misunderstanding. If you close the search early for a reason unrelated to our work, we bill for the stage in hand and no further. If a General Counsel we place leaves you within the first year for reasons within our control, we will reopen the search once at no added fee.

Holding Confidence

We treat what you tell us, and all we learn during the search, as confidential, and we use it only for this work. Inside our office, access sits with the people named above and with those whose work on the search requires it. We extend the same care to candidates. We do not reveal a prospect's interest to anyone outside your committee without their knowledge, and we describe them by their role rather than their name

until you are ready to meet. We guard that discretion closely, because it is the reason strong candidates are willing to speak with us while they are still in post.

Where Our Liability Sits

We give this search our best professional judgment. Still, the choice of whom to hire is finally yours, and we cannot warrant how any person will perform once appointed. Our liability to you under this engagement, whether framed in contract or in negligence, will not exceed the total fees you pay us under it, save for our own fraud or willful misconduct. Neither of us will be liable to the other for indirect or consequential loss.

The Law That Governs Us

This agreement is governed by the law of the state in which our office sits, without regard to its conflict-of-laws rules. Should any dispute arise, we will each make a real effort to settle it in conversation before either of us turns elsewhere.

If these terms read as we agreed, the next step is a simple one. Please sign both copies where shown below, keep one for your file, and return the other to me. That single signature is all we need to begin. If anything here gives you pause, call me first, and we will settle it before you sign. We are glad to be doing this with you.

With warm regards,

Kelly Chavez

Managing Director

Date: April 29, 2019

Amy Alvarez

General Manager, Howard, Carlson and Tran

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